



POLICE DEPARTMENT

3/18/2020

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 12, 2020

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201807690 regarding Sergeant Kevin McCarthy, Tax No. [REDACTED] (DADS No. 2019-21346)

Dear Mr. Darche:

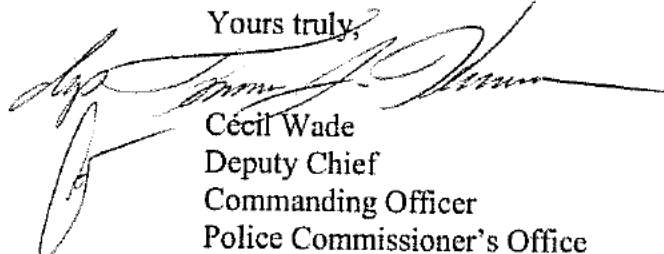
The Police Commissioner has reviewed the facts and circumstances of this matter, including audio and video recordings, and determined that Sergeant Kevin McCarthy will receive no disciplinary action for his actions in this matter.

Sergeant McCarthy admitted to using his Department-issued cellphone to record his conversation with an individual and then presented the recording at his Civilian Complaint Review Board hearing. He admittedly did so in order to guard against any potential allegations of physical force. Furthermore, Civilian Complaint Review Board's own investigation acknowledged that Sergeant McCarthy's audio recording of the individual was reasonable under the circumstances.

Additionally, the language in Operations Order No. 20 of 2015 does not prohibit members of service from recording the types of interactions with the public that Sergeant McCarthy recorded in this case.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,



Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office

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